

COMMONWEALTH OF MASSACHUSETTS

BARNSTABLE, ss.

SUPERIOR COURT DEPARTMENT
CIVIL ACTION NO.

SEASHORE POINT – DEACONESS
CONDOMINIUM TRUST,
Plaintiff,

vs.

PROVINCETOWN HOLDCO, LLC,
Defendant,

and

PROVINCETOWN – COLLECTOR OF TAXES,
Defendant/Party-in-Interest.

COMPLAINT

PRELIMINARY STATEMENT

1. This is an in rem action brought by the organization of unit owners of a condominium pursuant to G.L. c. 183A, §§ 6(a) and 6(c) and G.L. c. 254, §§ 5 and 5A, to establish and enforce a lien for unpaid common expenses. This action further seeks a determination of the priority of the unit owner organization’s lien under G.L. c. 183A, § 6(c).

JURISDICTION

2. This Court has original jurisdiction over this matter pursuant to G.L. c. 254, § 5.

PARTIES

3. The Plaintiff, Seashore Point – Deaconess Condominium Trust (“Condominium Trust”), was established by Declaration of Trust, dated May 22, 2012, and recorded with the Barnstable County Registry of Deeds (“Registry”) in Book 26359, Page 245, which Condominium Trust is the organization of unit owners for Seashore Point – Deaconess Condominium, a condominium established by Master Deed, dated May 22, 2012, and recorded

with the Registry in Book 26359, Page 216 (“Condominium”). The Condominium is located in Provincetown, Barnstable County, Massachusetts. The Condominium Trust brings this action pursuant to its powers in the said Declaration of Trust and/or in G.L. c. 183A, § 10(b)(4). Additionally, it brings this action on behalf of all other parties in interest pursuant to G.L. c. 254, § 5.

4. The Defendant, Provincetown HOLDCO, LLC (“Defendant”), is the record owner of Units 307, 314, RS-B-1, RS-B-2, RS-3, RS-B-4, RS-B-5, RS-1-1, RS-1-2, RS-1-3, RS-1-4, RS-1-5, RS-1-6, RS-2-1, RS-2-2, RS-2-3, RS-2-4, RS-2-5, RS-2-6, RS-2-7, RS-2-8, RS-2-9, RS-3-1, RS-3-2, RS-3-3, RS-3-4, RS-3-5, RS-3-6, RS-3-7, RS-3-8, SA-B-1 and SA-B-2 at the Condominium (“Units”), pursuant to a Unit Deed, dated November 1, 2019, and recorded with the Registry in Book 32435, Page 304. The Units have an address of 100 Alden Street, Provincetown, Barnstable County, Massachusetts 02657. The Defendant’s principal place of business is located at 320 Norwood Park South, Norwood, Norfolk County, Massachusetts 02062. The Defendant’s Resident Agent is Caterina Mina Labella, with an address of 10 Cabot Place, Stoughton, Norfolk County, Massachusetts 02072.

5. The Defendant/Party-in-Interest, Town of Provincetown – Collector of Taxes (“Collector”), has a principal place of business located at 260 Commercial Street, Provincetown, Barnstable County, Massachusetts 02657. The Collector is the holder of a lien of record upon Unit 307, dated December 5, 2023, and recorded with the Registry in Book 36133, Page 198, and a lien of record upon Unit 314, dated December 5, 2023, and recorded with the Registry in Book 36133, Page 201.

FACTUAL ALLEGATIONS

6. Pursuant to G.L. c. 183A, § 6, and the applicable provisions of the Condominium's governing documents, there are liens against the Units owned by the Defendant, which liens collectively total Two Hundred Seventeen Thousand Six Hundred Ninety-Nine Dollars and 25/100 (\$217,699.25) (hereinafter, "common expenses").

7. Pursuant to G.L. c. 183A, § 6(a), the liens include attorneys' fees and costs incurred by the Condominium Trust in pursuing this matter in accordance with said provisions.

8. Pursuant to G.L. c. 183A, § 6(c), the Condominium Trust gave the Defendant notice of said common expenses by certified and first-class mail.

9. There are no mortgages on the Units.

COUNT I – AGAINST THE UNITS

10. Pursuant to the provisions of G.L. c. 183A, §§ 6(a) and 6(c), the common expenses due as aforesaid, and such attorneys' fees and costs as may additionally accrue hereafter, constitute liens upon the Units.

COUNT II – ESTABLISHING THE PRIORITY OF THE LIENS

11. Pursuant to the provisions of G.L. c. 183A, § 6(c), the liens on the Units have priority over all other liens and encumbrances except: (a) liens and encumbrances recorded prior to the recording of the aforesaid Master Deed; (b) liens for real estate taxes and other municipal assessments or charges; and (c) any first mortgage of record.

12. Pursuant to the provisions of G.L. c. 183A, § 6(c), the Condominium Trust's lien is prior to any first mortgage of record to the extent of monthly common expense assessments that became due during the six (6) months prior to the institution of this action plus all attorneys' fees and costs incurred by the Condominium Trust in the enforcement thereof.

PRAYER FOR RELIEF

WHEREFORE, the Condominium Trust prays that this Honorable Court enter judgment for the Condominium Trust and against the Defendant and Collector as follows:

- (a) declare that there are liens upon the Units in the amount as may be found;
- (b) declare that the liens are entitled to the priority as provided for by law;
- (c) order the sale of the Units to satisfy, in whole or in part, the declared liens; and
- (d) grant such other relief as may be just and proper.

Respectfully submitted,

SEASHORE POINT – DEACONESS
CONDOMINIUM TRUST

By its attorney,

/s/ Thomas O. Moriarty

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